

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #02	CCRB Case #: 202300598	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/22/2023 12:15 AM, Sunday, 01/22/2023 1:00 AM	Location of Incident: § 87(2)(b); Over the Phone	18 Mo. SOL 7/22/2024	Precinct: 120		
Date/Time CV Reported Mon, 01/23/2023 1:06 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/23/2023 1:06 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Michael Rugolo	27392	972227	120 PCT
2. PO Mohammed Suleiman	10842	964793	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Peter Masullo	10735	964636	120 PCT
2. PO Anthony Limoncelli	04374	959757	120 PCT
3. PO John Tepedino	20966	963298	120 PCT
4. PO James Giovansanti	22550	968444	120 PCT
5. PO Fiona Oneill	06106	959000	120 PCT
6. PO Nicholas Incorvaia	25224	972013	120 PCT
7. PO Andrew Ortegaobrien	15831	957923	120 PCT
8. PO Vincent Reres	16994	957998	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Mohammed Suleiman	Abuse: At § 87(2)(b), in Staten Island, Police Officer Mohammed Suleiman threatened § 87(2)(b) with use of force	A . Within NYPD Guidelines
B . PO Michael Rugolo	Abuse: Allegation (B) Abuse of Authority: Over the telephone, Police Officer Michael Rugolo questioned § 87(2)(b)	B . Within NYPD Guidelines

Case Summary

On January 23, 2023, § 87(2)(b) filed this complaint with the CCRB via phone (BR 1).

On January 22, 2023, at approximately 12:15 AM, at § 87(2)(b) in Staten Island, § 87(2)(b) called 911 regarding a dispute with her § 87(2)(b) child § 87(2)(b) (while § 87(2)(b) referred to § 87(2)(b) as her “daughter” to the CCRB during her interview and to the 911 operator and officers during the incident itself, § 87(2)(b) s preferred pronouns are he/him). After arriving at the residence and speaking to § 87(2)(b) Police Officer Mohammed Suleiman of the 120th Precinct walked towards § 87(2)(b) s open bedroom door and withdrew his taser while doing so (**Allegation (A) – Abuse of Authority: Threat of Force, Within NYPD Guidelines**). Police Officer Suleiman then returned his taser into his holster upon seeing § 87(2)(b) and began to speak with him about the incident. After § 87(2)(b) filled out a Domestic Incident Report, the officers then left the scene.

At approximately 1:00 AM, § 87(2)(b) received a telephone call from Police Officer Michael Rugolo of the 120th Precinct, who asked her for her § 87(2)(b) son § 87(2)(b) § 87(2)(b) first and last name (**Allegation (B) Question, Within NYPD Guidelines**).

Body-Worn Camera (BWC) footage was obtained from the BWCs of Police Officers Suleiman, Rugolo, Peter Masullo, Anthony Limoncelli, John Tepedino, James Giovansanti, Fiona O’Neill, Nicholas Incorvaia, Andrew Ortegaobrien, and Vincent Reres (**BR 12,13,14**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Staten Island, Police Officer Mohammed Suleiman threatened § 87(2)(b) with use of force.

§ 87(2)(b) was interviewed by the CCRB on February 7, 2023 (**BR 3**). § 87(2)(b) was interviewed by the CCRB on February 7, 2023 (**BR 2**). Police Officer Suleiman was interviewed by the CCRB on May 19, 2023 (**BR 4**).

§ 87(2)(b) stated that when Police Officers Suleiman and Rugolo arrived, they told her to wait in the living room while they went to speak to § 87(2)(b). § 87(2)(b) later learned from § 87(2)(b) that one of the two officers pointed a taser at him.

§ 87(2)(b) stated that while he was lying in bed in his bedroom with the door fully open, he saw Police Officer Suleiman with a taser pointed towards his room. Police Officer Suleiman asked if § 87(2)(b) was in the room, to which § 87(2)(b) verbally confirmed that he was. Upon seeing § 87(2)(b) Police Officer Suleiman immediately put his taser in his holster and entered § 87(2)(b) s bedroom.

Footage from Police Officer Suleiman’s BWC (**BR 14**), at timestamp 1:59, shows § 87(2)(b) with a long red scratch mark on her right arm. When Police Officer Suleiman asks where she got it from, § 87(2)(b) tells them she got it from § 87(2)(b). At timestamp 3:28, § 87(2)(b) explains to the officers that § 87(2)(b) grabbed her, scratched her arm, and pushed § 87(2)(b) s younger son to the floor.

Footage from Police Officer Masullo’s BWC (**BR 12**), at timestamp 4:28, shows Police Officer Suleiman putting his hand on his holstered taser as he walks towards § 87(2)(b) s room and calls out their name. At 4:30 seconds Police Officer Masullo, who is behind Police Officer Suleiman, tells Police Officer Suleiman, “She’s right there. On the left side” and points towards the

bedroom. At 4:33, Police Officer Suleiman stops walking, withdraws his taser, but does not point it, and leans his head in the direction of § 87(2)(b)'s bedroom. At 4:35, Police Officer Suleiman appears to see § 87(2)(b) who is sitting quietly on his bed, and then puts his taser back in his holster and walks into the room.

Police Officer Suleiman, when interviewed, had no independent recollection of the incident. When shown the footage from Police Officer Masullo's BWC showing him drawing his taser, Police Officer Suleiman stated that he believed that he briefly took his taser out because he was entering a room with unknown danger and had no idea what could be in the room. Upon seeing § 87(2)(b) he immediately put his taser away.

Event § 87(2)(b) (BR 8) details the call made by § 87(2)(b) to 911. § 87(2)(b) stated in the call that her daughter put hands on her, causing injury, and was being aggressive.

NYPD Patrol Guide Procedure 221-08 (BR 09) states that a Conducted Electrical Weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. Factors to consider when determining the appropriate use of force include the nature and severity of the circumstances, action taken by the subject, and immediacy of perceived threat or harm to subject, officers, and/or bystanders. It further notes that officers may utilize the threat of utilizing the CEW, via a Laser Warning or a Warning Arc, to "attempt to achieve voluntary compliance. When feasible and consistent with personal safety, a verbal warning should be given to the intended subject."

As shown in the BWC footage, while Police Officer Suleiman briefly withdrew his Taser as he approached § 87(2)(b)'s room, he did not point it at their room as alleged. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation (B) Abuse of Authority: Over the telephone, Police Officer Michael Rugolo questioned § 87(2)(b)

§ 87(2)(b) stated that an hour after officers left during the first incident, she received a call from Police Officer Rugolo, who asked her for her son's first and last name since he was present during the previous incident.

Domestic Incident Report (DIR) # § 87(2)(b) (BR 7) lists § 87(2)(b) § 87(2)(b) age § 87(2)(b) as a child/witness to the domestic incident between § 87(2)(b) and § 87(2)(b). Further, § 87(2)(b)'s statement on the DIR states that § 87(2)(b) pushed § 87(2)(b) § 87(2)(b) to the floor.

NYPD Patrol Guide Procedure 208-36 (BR 15) states that an officer is to interview and record names of any witnesses present at time of occurrence of any domestic incident involving members of the same family or household.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 6**).
- § 87(2)(b) has been party, as a witness, to one other CCRB complaints and has been named as a victim in no prior allegations (**BR 5**)
- Police Officer Rugolo has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.
- Police Officer Suleiman has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 22, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 16**)

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 2

Investigator:	<u>Zim Sessoms</u>	<u>Inv. Zim Sessoms</u>	<u>06/27/23</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>6/27/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date